



Republic of the Philippines  
City of Baguio  
SANGGUNIANG PANLUNGSOD  
(CITY COUNCIL)

REGULAR SESSION HELD ON 17 SEPTEMBER 2012

PRESENT:

Hon. Nicasio M. Aliping Jr., *Acting City Vice Mayor and Presiding Officer*;  
Hon. Betty Lourdes F. Tabanda, *Member*;  
Hon. Isabelo B. Cosalan Jr., *Member*;  
Hon. Elmer O. Datuin, *Member*;  
Hon. Peter C. Fianza, *Member*;  
Hon. Edison R. Bilog, *Member*;  
Hon. Richard A. Cariño, *Member*;  
Hon. Fred L. Bagbagen, *Member*;  
Hon. Philian Louise C. Weygan-Allan, *Member*;  
Hon. Nicasio S. Palaganas, *Member*;  
Hon. Joel A. Alangsab, *Ex-Officio Member*; and  
Hon. Karminn Cheryl Dinney D. Yangot, *Ex-Officio Member*.

ABSENT:

Hon. Daniel T. Fariñas, *City Vice Mayor (Acting City Mayor)*;  
Hon. Perlita L. Chan-Rondez, *Member (with prior notice)*; and  
Hon. Erdolfo V. Balajadia, *Member (on official travel abroad)*.

*Introduced by Hon. Isabelo B. Cosalan Jr.*

**RESOLUTION Numbered 222**  
(Series of 2012)

REQUESTING THE NATIONAL COMMISSION ON INDIGENOUS PEOPLES - CORDILLERA ADMINISTRATIVE REGION (NCIP-CAR) TO ASCERTAIN THE THRESHOLD OF INDIGENOUS PEOPLES POPULATION IN THE CITY OF BAGUIO TO DETERMINE THE POSSIBILITY OF HAVING AN INDIGENOUS PEOPLE (IP) SECTORAL REPRESENTATIVE IN THE CITY COUNCIL PURSUANT TO EXISTING LAWS.

WHEREAS, the City of Baguio is originally an indigenous peoples' settlement occupied by Ibaloi and Kankanaey tribes;

WHEREAS, pursuant to the Indigenous Peoples Rights Act, certain portions of the City had already been awarded and titled to indigenous claimants;

WHEREAS, the full and sustainable development of the City is affected by these certificates of ancestral land and domain titles knowing that portions of the same are of high impact -- environmentally, economically, and socially;

WHEREAS, Article 93 (b) (2) of the Rules and Regulations Implementing the Local Government Code of 1991 provides that "*There shall be one (1) sectoral representative from the women, one (1) from the workers, and one (1) from any of the following sectors: the urban poor, indigenous cultural communities ....*";

WHEREAS, Department of the Interior and Local Government – National Commission on Indigenous Peoples (DILG-NCIP) Joint Circular No. 001, Series of 2011 [Guidelines for the Determination of the Minimum Threshold of IP/ICC Population in a Local Government Unit (LGU) to allow Mandatory Representation in the Local Sanggunians], provides that it is the function of the NCIP in coordination with the DILG to determine and certify the minimum IP threshold required for the IPs to be entitled to a sectoral representative in the City Council; and

WHEREAS, the Committee on Education, Culture and Historical Research, in its 2<sup>nd</sup> Indorsement dated 08 August 2012, submitted its report and recommendation as follows:

"...."

"The COMMITTEE ON EDUCATION, CULTURE AND HISTORICAL RESEARCH recommends APPROVAL of the proposed resolution notwithstanding observations made to wit:

"a) Actual population of the city as of 2010 is 318,676 with projected population for 2012 at 326,955 based on a 2.36 growth rate. However, key agencies and offices, including NSO, NCIP and NSCB could not provide data on IP/ICC population. What is only available on ethnicity is household population by mother tongue for 2000 and 2007. Without the IP/ICC population, the minimum number to be met for an IP mandatory representative in the sanggunian may not be computed;

"b) While the 'threshold' can also be computed on the basis of land area occupied by IP/ICC, data on IP/ICC landholding cannot also be obtained as would provide basis for the determination of minimum five percent (5%) of the total land area of the LGU for a representative in the sanggunian;

"c) There are various IPs in the City of Baguio. Computation of the 'threshold' may not be proper to be based on the aggregate IPs population because of diverse cultures;

"d) DILG-NCIP Joint Circular No. 001, Series of 2011, provides the procedure for the computation of the 'threshold' and requiring NCIP coordination with the LGU that finality of the computation sought must be reached in consultation with the LGU;

"Related to the foregoing, it is further recommended that clarification or opinion be sought on whether the IP mandatory representative in the sanggunian be deemed satisfied with the election or membership of IPs in the sanggunian.

"...";

NOW, THEREFORE, on motion of Hon. Fianza, Hon. Cosalan, and Hon. Weygan-Allan, seconded by Hon. Tabanda, Hon. Bagbagen, Hon. Bilog, and Hon. Alangsab, be it,

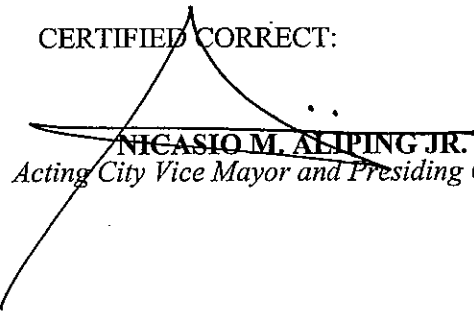
RESOLVED, as it is hereby resolved, to request the National Commission on Indigenous Peoples – Cordillera Administrative Region (NCIP-CAR) to ascertain the threshold of Indigenous Peoples population in the City of Baguio to determine the possibility of having an Indigenous People (IP) Sectoral Representative in the City Council pursuant to existing laws.

RESOLVED, FURTHER, that clarification or opinion be given on whether the IP mandatory representative in the sanggunian be deemed satisfied with the election or membership of IPs in the sanggunian.

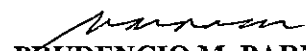
Adopted.

Hon. Yangot was out of the Session Hall during the deliberation and voting.

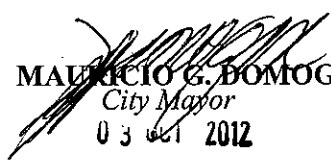
CERTIFIED CORRECT:

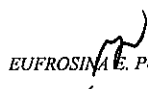
  
**NICASIO M. ALIPIO JR.**  
Acting City Vice Mayor and Presiding Officer

Attested:

  
**PRUDENCIO M. PARNACIO**  
City Secretary

APPROVED: \_\_\_\_\_

  
**MALICIO G. DOMOGAN**  
City Mayor  
03 OCT 2012

  
EUFROSINA E. PULMANO

  
DONNA M. BAGAWI